UNITED STATES PATENT AND TRADEMARK OFFICE

UNITED STATES DEPARTMENT OF COMMERCE
United States Patent and Trademark Office
Address: COMMISSIONER FOR PATENTS
P.O. Box 1450
Alexandria, Virginia 22313-1450
www.uspto.gov

APPLICATION NO.	FILING DATE	FIRST NAMED INVENTOR	ATTORNEY DOCKET NO.	CONFIRMATION NO.
17/866,207	07/15/2022	Scott A. McFadden	YAK3M4	2593

23581 7590 07/11/2024

KOLISCH HARTWELL, P.C.
520 SW YAMHILL STREET, SUITE 520
PORTLAND, OR 97204

EXAMINER
ROERSMA, ANDREW MARK

ART UNIT	PAPER NUMBER
3637	

NOTIFICATION DATE	DELIVERY MODE
07/11/2024	ELECTRONIC

Please find below and/or attached an Office communication concerning this application or proceeding.

The time period for reply, if any, is set in the attached communication.

Notice of the Office communication was sent electronically on above-indicated "Notification Date" to the following e-mail address(es):

docketing@khpatent.com
veronica@khpatent.com

Office Action Summary	Application No. 17/866,207	Applicant(s) McFadden et al.	
	Examiner ANDREW ROERSMA	Art Unit 3637	AIA (FITF) Status Yes

-- The MAILING DATE of this communication appears on the cover sheet with the correspondence address --

Period for Reply

A SHORTENED STATUTORY PERIOD FOR REPLY IS SET TO EXPIRE 3 MONTHS FROM THE MAILING DATE OF THIS COMMUNICATION.

- Extensions of time may be available under the provisions of 37 CFR 1.136(a). In no event, however, may a reply be timely filed after SIX (6) MONTHS from the mailing date of this communication.
- If NO period for reply is specified above, the maximum statutory period will apply and will expire SIX (6) MONTHS from the mailing date of this communication.
- Failure to reply within the set or extended period for reply will, by statute, cause the application to become ABANDONED (35 U.S.C. § 133). Any reply received by the Office later than three months after the mailing date of this communication, even if timely filed, may reduce any earned patent term adjustment. See 37 CFR 1.704(b).

Status

1)☑ Responsive to communication(s) filed on 28 June 2024.

☐ A declaration(s)/affidavit(s) under **37 CFR 1.130(b)** was/were filed on _____.

2a)☑ This action is **FINAL.** 2b) ☐ This action is non-final.

3)☐ An election was made by the applicant in response to a restriction requirement set forth during the interview on _____; the restriction requirement and election have been incorporated into this action.

4)☐ Since this application is in condition for allowance except for formal matters, prosecution as to the merits is closed in accordance with the practice under *Ex parte Quayle*, 1935 C.D. 11, 453 O.G. 213.

Disposition of Claims*

5) ☑ Claim(s) 1-7,9-18 and 21-23 is/are pending in the application.

5a) Of the above claim(s) 10-17 and 21-23 is/are withdrawn from consideration.

6) ☐ Claim(s) _____ is/are allowed.

7) ☑ Claim(s) 1-7,9 and 18 is/are rejected.

8) ☐ Claim(s) _____ is/are objected to.

9) ☐ Claim(s) _____ are subject to restriction and/or election requirement

* If any claims have been determined allowable, you may be eligible to benefit from the **Patent Prosecution Highway** program at a participating intellectual property office for the corresponding application. For more information, please see http://www.uspto.gov/patents/init_events/pph/index.jsp or send an inquiry to **PPHfeedback@uspto.gov.**

Application Papers

10)☐ The specification is objected to by the Examiner.

11)☑ The drawing(s) filed on 15 July 2022 is/are: a)☑ accepted or b)☐ objected to by the Examiner.

Applicant may not request that any objection to the drawing(s) be held in abeyance. See 37 CFR 1.85(a).

Replacement drawing sheet(s) including the correction is required if the drawing(s) is objected to. See 37 CFR 1.121(d).

Priority under 35 U.S.C. § 119

12)☐ Acknowledgment is made of a claim for foreign priority under 35 U.S.C. § 119(a)-(d) or (f).

Certified copies:

a)☐ All b)☐ Some** c)☐ None of the:

1.☐ Certified copies of the priority documents have been received.

2.☐ Certified copies of the priority documents have been received in Application No. _____.

3.☐ Copies of the certified copies of the priority documents have been received in this National Stage application from the International Bureau (PCT Rule 17.2(a)).

** See the attached detailed Office action for a list of the certified copies not received.

Attachment(s)

1) ☑ Notice of References Cited (PTO-892)

2) ☐ Information Disclosure Statement(s) (PTO/SB/08a and/or PTO/SB/08b) Paper No(s)/Mail Date _____.

3) ☐ Interview Summary (PTO-413) Paper No(s)/Mail Date _____.

4) ☐ Other: _____.

DETAILED ACTION

Notice of Pre-AIA or AIA Status

The present application, filed on or after March 16, 2013, is being examined under the first inventor to file provisions of the AIA.

Election/Restrictions

Newly submitted **claims 10-17 and 21-23** directed to an invention that is independent or distinct from the invention originally claimed for the following reasons: The originally claimed invention does not encompass a combination of a portable food preparation apparatus and a vehicle hitch rack, while the newly submitted claims encompass the combination of the portable food preparation apparatus and the vehicle hitch rack. A combination of a portable food preparation apparatus and a vehicle hitch rack is outside of the classification for the originally-claimed invention.

Since applicant has received an action on the merits for the originally presented invention, this invention has been constructively elected by original presentation for prosecution on the merits. Accordingly, **claims 10-17 and 21-23** are withdrawn from consideration as being directed to a non-elected invention. See 37 CFR 1.142(b) and MPEP § 821.03.

To preserve a right to petition, the reply to this action must distinctly and specifically point out supposed errors in the restriction requirement. Otherwise, the election shall be treated as a final election without traverse. Traversal must be timely. Failure to timely traverse the requirement will result in the loss of right to petition under 37 CFR 1.144. If claims are subsequently added, applicant must indicate which of the subsequently added claims are readable upon the elected invention.

Should applicant traverse on the ground that the inventions are not patentably distinct, applicant should submit evidence or identify such evidence now of record showing the inventions to be obvious variants or clearly admit on the record that this is the case. In either instance, if the examiner finds one of the inventions unpatentable over the prior art, the evidence or admission may be used in a rejection under 35 U.S.C. 103 or pre-AIA 35 U.S.C. 103(a) of the other invention.

Claim Objections

Claim 1 is objected to because of the following informalities: In line 6, the recitation "wall" should be "wall,".

Appropriate correction is required.

Claim Rejections - 35 USC § 112

The following is a quotation of the first paragraph of 35 U.S.C. 112(a):

> (a) IN GENERAL.—The specification shall contain a written description of the invention, and of the manner and process of making and using it, in such full, clear, concise, and exact terms as to enable any person skilled in the art to which it pertains, or with which it is most nearly connected, to make and use the same, and shall set forth the best mode contemplated by the inventor or joint inventor of carrying out the invention.

Claim 18 is rejected under 35 U.S.C. 112(a), as failing to comply with the written description requirement. The claim(s) contains subject matter which was not described in the specification in such a way as to reasonably convey to one skilled in the relevant art that the inventor or a joint inventor, at the time the application was filed, had possession of the claimed invention.

With respect to claim 18: Page 8 of the originally-filed specification states:

> In the present example, enclosure **106** includes a front lip on the top, bottom, and side walls. The front lip is shaped to contact an inner surface **121** of door **104**. A flange formed on the lip may include or retain a gasket or seal to form a seal between door **104** and enclosure **106** when the door is closed. Such a seal may

> help to maintain a desired temperature inside box **102** during transport, avoid leakage from spilled ingredients inside the box, and/or weatherproof the box and prevent intrusion of dust, dirt, or water from the environment into the box.

Claim 18 recites "a gasket disposed on a flange along an inner lip of the door". This necessitates rejection under 35 U.S.C. § 112(a) because the specification has the gasket on the enclosure, while the claim has the gasket on the door. Further, the claim defines an inner lip and flange on the door when the specification does not support such limitations.

Claim Rejections - 35 USC § 103

The following is a quotation of 35 U.S.C. 103 which forms the basis for all obviousness rejections set forth in this Office action:

> A patent for a claimed invention may not be obtained, notwithstanding that the claimed invention is not identically disclosed as set forth in section 102, if the differences between the claimed invention and the prior art are such that the claimed invention as a whole would have been obvious before the effective filing date of the claimed invention to a person having ordinary skill in the art to which the claimed invention pertains. Patentability shall not be negated by the manner in which the invention was made.

The factual inquiries for establishing a background for determining obviousness under 35 U.S.C. 103 are summarized as follows:

1. Determining the scope and contents of the prior art.
2. Ascertaining the differences between the prior art and the claims at issue.
3. Resolving the level of ordinary skill in the pertinent art.
4. Considering objective evidence present in the application indicating obviousness or nonobviousness.

This application currently names joint inventors. In considering patentability of the claims the examiner presumes that the subject matter of the various claims was commonly owned as of the effective filing date of the claimed invention(s) absent any evidence to the contrary. Applicant is advised of the obligation under 37 CFR 1.56 to point out the inventor and effective filing dates of each claim that was not commonly owned as of the effective filing date of the later invention in order for the examiner to

consider the applicability of 35 U.S.C. 102(b)(2)(C) for any potential 35 U.S.C. 102(a)(2) prior art against the later invention.

Claim(s) 1 is/are rejected under 35 U.S.C. 103 as being unpatentable over US 4,779,940 (Ralston).

With respect to claim 1: Ralston discloses a portable kitchen assembly, comprising: a substantially rectangular container (container 12) having a top wall (top wall 50), bottom wall (bottom wall 57), back wall (door-container 15), front wall (door-container 14), first and second side walls (side walls 70 and 71), the front wall being configured to open to a kitchen counter position (Fig. 1), a substantially rectangular leg assembly frame (stand 11 - excluding of elements 20, 23, 25, and 27) including a sleeve (connectors 36-39) at each of four corners (at least Fig. 5), and stowable legs (elements 20, 23, 25, and 27) attachable to the sleeves of the leg assembly from for supporting the container at a convenient height for standing preparation of food (at least Figs. 1 and 5).

Ralston does not disclose "a channel in the external side of the bottom wall, configured to receive the leg assembly frame", with the stand 11 "removably attachable to an external side of the bottom wall" as claimed.

Ralston col. 3, lines 19-28 and Fig. 8 disclose a panel 16 that includes a quarter-circular surface 40 that conforms to element 29, to prevent sliding of the panel 16 in the directions of arrow B in Fig. 1.

It would have been obvious to one of ordinary skill in the art before the effective filing date of the invention to modify Ralston's bottom wall 57 to have quarter-circular surfaces 40 therein, similarly to the panel 16, in order to prevent the container 12 from sliding off of the elements 30 and 31 when in the position of Fig. 1.

As modified, the surfaces 40 in the bottom wall 57 meet "a channel formed in the external side of the bottom wall" similarly to the surfaces 40 being formed in an external side of the bottom of panel 16 in Ralston Fig. 8. Such surfaces 40 on wall 57 engaging elements 30 and 31 meets "removably attachable to an external side of the bottom wall" as claimed.

Claim(s) 2 is/are rejected under 35 U.S.C. 103 as being unpatentable over US 4,779,940 (Ralston) as applied to claim 1 above, and further in view of US 2,944,862 (Heil).

With respect to claim 2: Ralston does not disclose "wherein the legs are adjustable to a plurality of heights" as claimed.

Heil col. 4, lines 20-26 disclose telescopic legs 58 attached to a case 1, to compensate for variation in ground level or to adjust the working height of the case 1.

It would have been obvious to one of ordinary skill in the art before the effective filing date of the invention to modify Ralston's stand 11 to include telescopic legs like Heil's legs 58, in order to compensate Ralston's work-storage unit for variation in ground level or to adjust the working height thereof.

The modified, telescopic legs meet "wherein the legs are adjustable to a plurality of heights" as claimed.

Claim(s) 3 and 7 is/are rejected under 35 U.S.C. 103 as being unpatentable over US 4,779,940 (Ralston) as applied to claim 1 above, and further in view of US 10,054,354 (Kennedy).

With respect to claims 3 and 7: Ralston does not disclose "further including a first side counter member alternatively attachable to an external side of the first side wall and an external side of the second side wall" as recited in claim 3 and/or "further including a second side counter member alternatively attachable to the external side of the first side wall and the external side of the second side wall" as recited in claim 7.

Kennedy discloses attachment plates 42 for selective attachment of a tray 19 to a portable cooler 10. The tray has support arms 19A, each with a stud that slides into the keyhole pattern of the plates 42. The plates 42 are bolted into recesses in base 12B such that when tray 19 is removed, nothing projects from the base 12B. This precludes unwanted catching of items (clothes, etc.) on the base 12B. See Figs. 5-6 and col. 5, lines 14-55.

It would have been obvious to one of ordinary skill in the art before the effective filing date of the invention to put Kennedy's attachment plates 42 on the side walls of Ralston's invention, in order to provide more areas on which to place items when in the position of Ralston Fig. 1.

Claim(s) 3-4 and 7 is/are rejected under 35 U.S.C. 103 as being unpatentable over US 4,779,940 (Ralston) as applied to claim 1 above, and further in view of US 2018/0306226 A1 (Huish).

With respect to claims 3 and 7: Ralston does not disclose "further including a first side counter member alternatively attachable to an external side of the first side wall and an external side of the second side wall" as recited in claim 3 and/or "further including

a second side counter member alternatively attachable to the external side of the first side wall and the external side of the second side wall" as recited in claim 7.

Huish discloses rails 208 that are used to mount a wide variety of accessories on a portable cooler 100. Such accessories include, but are not limited to, rod holders, umbrellas, canopies, shade covers, tables, cutting boards, wheels, storage containers, pouches, bags, drink holders, leveling struts, extendable legs, handles, and a cradle system. See Figs. 1-30 and [0064].

It would have been obvious to one of ordinary skill in the art before the effective filing date of the invention to put Huish's rails 208 on the side walls of Ralston's invention, in order to mount a wide variety of accessories thereon – analogously to Huish's invention.

With respect to claim 4: Huish discloses plural rails 208 at different heights. In the combination, this meets and/or makes obvious "wherein the external side of each of the first side wall and the second side wall has plural rail structures for selectably fastening the first side counter at multiple different heights" as claimed.

Claim(s) 5-6 is/are rejected under 35 U.S.C. 103 as being unpatentable over US 4,779,940 (Ralston) in view of US 10,054,354 (Kennedy) as applied to claim 3 above, and further in view of US 2006/0076861 A1 (Baughman).

Claim(s) 5-6 is/are rejected under 35 U.S.C. 103 as being unpatentable over US 4,779,940 (Ralston) in view of US 2018/0306226 A1 (Huish) as applied to claim 3 above, and further in view of US 2006/0076861 A1 (Baughman).

With respect to claim 5: Ralston, as modified, does not disclose "wherein the first side counter has a telescoping leg for supporting the side counter in a horizontal orientation" as claimed.

Baughman discloses a support leg 172 for a table 136. The support leg 172 includes telescoping members 174 and a stabilizer 176 that can be secured to the ground with a stake 178, weighted item, or other mechanism. See Fig. 1D and [0055].

It would have been obvious to one of ordinary skill in the art before the effective filing date of the invention to have Baughman's support leg 172 on the "first side counter", in order to provide ground-contacting support therefor.

With respect to claim 6: Baughman shows that it is known in the art to put a collapsible sink 144 in an opening 142 of a side table 120. See Fig. 1B and [0049].

It would have been obvious to one of ordinary skill in the art before the effective filing date of the invention to combine Baughman's opening 142 and collapsible sink 144 with the "first side counter", in order to provide a place to wash hands and/or food.

Claim(s) 9 is/are rejected under 35 U.S.C. 103 as being unpatentable over US 4,779,940 (Ralston) as applied to claim 1 above, and further in view of US 4,501,457 (Pond).

With respect to claim 9: Ralston Fig. 1 shows container 12 "further including an interior shelf" as claimed.

Ralston does not disclose the claimed "utensil tray".

Pond discloses drawer 36 suspended from a panel 12 by rails 34 attached to the surface 32 of the panel 12. See Figs. 1-3 and col. 2, lines 1-2.

It would have been obvious to one of ordinary skill in the art before the effective filing date of the invention to mount Pond's drawer 36 to one of the interior shelves of Ralston's container 12 using rails 34, in order to provide different storage compartmentalization that what Ralston provides.

Claim(s) 18 is/are rejected under 35 U.S.C. 103 as being unpatentable over US 6,543,436 (Montgomery) in view of US 4,501,457 (Pond), US 2006/0076861 A1 (Baughman), and US 9,726,415 B1 (Spalti)

With respect to claim 18: Montgomery discloses a portable kitchen, comprising a rectangular box (Fig. 1) including an enclosure (at least base unit 20) and a front door (front shelf 14), the front door opening from a vertical position (Fig. 1) through 90 degrees to a horizontal position (Fig. 2, using hinge 22), a horizontal shelf (work surface 42) mounted in the enclosure, a utensil tray (utensil drawer 60), and a structure (lamppost 70) being selectively mountable in a vertical orientation on top of the enclosure (Fig. 2).

Montgomery does not disclose the rectangular box is "insulated" as claimed. Montgomery does not disclose the claimed "gasket".

Spalti discloses insulating a storage box, in order to use the box as a cooler for food storage. Spalti discloses gaskets 240, 250 disposed on flanges along an inner lip of a door, in order to form a seal between said door and the enclosure.

It would have been obvious to one of ordinary skill in the art before the effective filing date of the invention to insulate Montgomery's camp box, and to put gasket 240 on a flange along an inner lip of front shelf 14, in order to adapt Montgomery's camp box for use as a cooler.

Montgomery does not disclose the drawer 60 "suspended from the horizontal shelf" as claimed.

Pond discloses drawer 36 suspended from a panel 12 by rails 34 attached to the surface 32 of the panel 12. See Figs. 1-3 and col. 2, lines 1-2.

It would have been obvious to one of ordinary skill in the art before the effective filing date of the invention to mount Montgomery's drawer 60 to the bottom of work surface 42 using Pond's rails 34 attached to the bottom of work surface 42, because Pond shows that is a known way in the art to slidably support a drawer.

Montgomery's lamppost 70 does not meet "an organizer having a plurality of pockets" as claimed.

Baughman discloses a rack assembly 148 that can hold and/or organize kitchen implements. The rack assembly 148 is similar to Montgomery's lamppost 70 that supports a lamp 73 in that rack assembly 148 supports a lantern 167. Baughman's rack assembly 148 has two vertical supports 160 that engage openings which are analogous to Montgomery's hole 72.

It would have been obvious to one of ordinary skill in the art before the effective filing date of the invention to modify Montgomery's upper edge 20a to have two holes 72, and to mount Baughman's rack assembly 148 to said two holes 72, in order to hold more than just Montgomery's lamp 73 above the base unit 20.

See Baughman Fig. 1C. In the combination, the shelves 164 form "a plurality of pockets" as claimed.

Response to Arguments

The claim objections made in the previous Office action are withdrawn, as being overcome by the latest amendment. A new claim objection is made above in this Office action.

The prior art rejections made in the previous Office action are no longer relied upon, thereby rendering moot the Applicant's arguments made thereagainst. The new prior art rejections made in this Office action are necessitated by the latest amendment.

Conclusion

Applicant's amendment necessitated the new ground(s) of rejection presented in this Office action. Accordingly, **THIS ACTION IS MADE FINAL**. See MPEP § 706.07(a). Applicant is reminded of the extension of time policy as set forth in 37 CFR 1.136(a).

A shortened statutory period for reply to this final action is set to expire THREE MONTHS from the mailing date of this action. In the event a first reply is filed within TWO MONTHS of the mailing date of this final action and the advisory action is not mailed until after the end of the THREE-MONTH shortened statutory period, then the shortened statutory period will expire on the date the advisory action is mailed, and any extension fee pursuant to 37 CFR 1.136(a) will be calculated from the mailing date of the advisory action. In no event, however, will the statutory period for reply expire later than SIX MONTHS from the date of this final action.

Any inquiry concerning this communication or earlier communications from the examiner should be directed to ANDREW ROERSMA whose telephone number is (571)270-3185. The examiner can normally be reached M-F 8:00-4:00.

Examiner interviews are available via telephone, in-person, and video conferencing using a USPTO supplied web-based collaboration tool. To schedule an interview, applicant is encouraged to use the USPTO Automated Interview Request (AIR) at http://www.uspto.gov/interviewpractice.

If attempts to reach the examiner by telephone are unsuccessful, the examiner's supervisor, Daniel Troy can be reached on 571-270-3742. The fax phone number for the organization where this application or proceeding is assigned is 571-273-8300.

Information regarding the status of published or unpublished applications may be obtained from Patent Center. Unpublished application information in Patent Center is available to registered users. To file and manage patent submissions in Patent Center, visit: https://patentcenter.uspto.gov. Visit https://www.uspto.gov/patents/apply/patent-center for more information about Patent Center and https://www.uspto.gov/patents/docx for information about filing in DOCX format. For additional questions, contact the Electronic Business Center (EBC) at 866-217-9197 (toll-free). If you would like assistance from a USPTO Customer Service Representative, call 800-786-9199 (IN USA OR CANADA) or 571-272-1000.

/ANDREW ROERSMA/
Primary Examiner, Art Unit 3637